



CHIEF JUSTICE
SUPREME COURT OF LIBERIA



JUDICIAL BRANCH
TEMPLE OF JUSTICE
MONROVIA, LIBERIA

BEFORE THE HONORABLE SUPREME COURT OF REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2021

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SR.....CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUOHASSOCIATE JUSTICE
BEFORE HIS HONOR: JOSEPH N. NAGBE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA.....ASSOCIATE JUSTICE

Republic of Liberia by and thru Lussine A.M. Sheriff and
others.....Appellant

Versus

His Honor Sikajipo Wollor, Resident Circuit Judge, Criminal
Court "D", First Judicial Circuit, Montserrado County, Republic
of Liberia et al,.....Appellees

APPEAL

GROWING OUT OF THE CASE:

Republic of Liberia by and thru Lussine A.M. Sheriff and
others.....Petitioners

Versus

His Honor Sikajipo Wollor, Resident Circuit Judge, Criminal
Court "D", First Judicial Circuit, Montserrado County, Republic
of Liberia et al,.....Respondents

APPEAL

GROWING OUT OF THE CASE:

Republic of Liberia by and thru Lussine A.M. Sheriff and
others.....Plaintiff

Versus

Foday Bass, Alex B. Sambullah, Momo Massaquoi,
Winston Karmue, Boakai Massaquoi, Kollis Massaquoi
.....Defendants

ARMED ROBBERY, TERRORISTIC
THREAT, AGGRAVATED ASSAULT
CRIMINAL ATTEMPT TO COMMIT
MURDER

JUDGMENT WITHOUT OPINION

When this case was called for hearing, Counsellor Sayma Syrenius Cephus, Solicitor General, Republic of Liberia, appeared for the appellant. Counsellor S.L. Lofen Kaneah, Jr., of NACH Legal Services, Inc. appeared for the appellees.

The Counsel for the appellant, Counsellor Sayma Syrenius Cephus, Solicitor General, Republic of Liberia, by leave of Court, made a submission on the Minutes of Court informing the Court that the Ministry of Justice has decided not to pursue this appeal taken from the ruling in a prohibition proceedings made by our Colleague, Madam Justice Jamesetta H. Wolokolie, then presiding in Chambers. The submission reads:

"At this stage, one of counsels for the appellant begs to inform Your Honors that the appellant does not intend to pursue this appeal. Since the circuit courts have just opened two days ago, the State will [request] for assignment to have the defendants tried during this term of court. And respectfully submits."

The Counsel for the appellees interposed no objection to the submission made by the counsel for the appellant.

From a careful perusal of the records in the case, the Court finds that on November 6, 2021, the counsels for the parties filed a Joint Stipulation of Voluntary Withdrawal before this Court which reads:

"WHEREAS, Appellees were arrested, investigated and charged by the Liberia National Police with the crimes of armed robbery, terroristic threat, aggravated assault, and criminal attempt to commit murder, and thereafter forward to court;

WHEREAS, after Appellees were duly indicted, they subsequently filed a motion to be admitted to bail, and said motion was resisted by the State, assigned, argued but was subsequently granted by the [trial court];

WHEREAS, Appellant, the Republic of Liberia filed a petition for a Writ of Prohibition before the Chambers Justice but the petition having been assigned and argued was denied; and

WHEREAS, the Republic of Liberia, (Appellant) excepted to the ruling of the Justice presiding in Chambers and announced an appeal to the full bench of the Supreme Court of Liberia, and said appeal was duly granted;

Now therefore, after consultations between the parties (Appellant and Appellees), they have agreed to stipulate as follows:

1. That the appeal to the ruling of the Chambers Justice be and same is hereby withdrawn; and
2. That the matter be forwarded to the court below for timely and speedy trial on its merits.

Respectfully Submitted:

Appellant and Appellees by and thru their Counsels:

Cllr. Sayma Syrenius Cephus
Solicitor General, Republic of Liberia

S.L. Lofen Kaneah, Jr.
NACH Legal Services, Inc

Approved:
Yussif D. Kaba
Associate Justice
Supreme Court of Liberia

This Court being satisfied that the Joint Stipulation of Voluntary Withdrawal filed by the parties and approved by our Colleague, Mr. Justice Yussif D. Kaba is in keeping with the Rules of the Supreme Court, it is hereby

ADJUDGED:

That the Joint Stipulation of Voluntary Withdrawal filed by the parties is hereby granted. Accordingly, the ruling of the Justice-in-Chambers which upheld the decision of the trial judge admitting the appellees to bail is affirmed and the appellees are ordered admitted to bail. The appeal is ordered dismissed. Considering that this case has remained in the lower court for a protracted period, we mandate that the trial court gives priority to its trial. AND IT IS HEREBY SO ORDERED.

GIVEN UNDER OUR HANDS AND THE SEAL OF THE SUPREME COURT
OF LIBERIA THIS 27th DAY OF JANUARY A.D. 2022.

Francis S. Korkpor, Sr.
CHIEF JUSTICE, SUPREME COURT OF LIBERIA

Sie-A-Nyene G. Yuoh
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

Joseph N. Nagbe
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

Yussif D. Kaba
ASSOCIATE JUSTICE, SUPREME COURT OF LIBERIA

Note: This being an appeal from the ruling of Madam Justice Jamesetta H. Wolokolie while presiding in Chambers, she did not participate in the hearing and determination of this case; hence, she did not sign this Judgment.